Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No.1 2018

I, James Findlay, Chief Executive Officer of the Australian Fisheries Management Authority ('AFMA'), as delegate of the AFMA Commission, make the following Direction.

Dated 2 November 2018

Dr James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Authorised Version F2018L01544 registered 06/11/2018

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1 Name

This instrument is the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No.1 2018*.

2 Commencement

This instrument commences seven days after it is registered on the Federal Register of Legislation.

3 Authority

This instrument is made under subsection 41A(2) of the *Fisheries Management Act 1991*.

4 Definitions

(a) In this instrument:

Act means the *Fisheries Management Act 1991*.

Management Plan means the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003*.

South Australian waters means the area defined in Division 2 of Part 1 of Part Schedule 6 of *Fisheries Management Regulations 1992.*

(b) A term used in this instrument that is defined in the Management Plan has the same meaning in this instrument as it has in the Management Plan.

5 Repeal

This instrument is repealed on 16 December 2018, unless earlier revoked.

6 Application

This instrument applies to a holder, in the Southern and Eastern Scalefish and Shark Fishery, of a:

(c) Gillnet Boat Statutory Fishing Right;

(d) Shark Hook Statutory Fishing Right;

(e) Scalefish Hook Statutory Fishing Right; or

(f) South Australian Coastal Waters Permit,

and to any person acting on behalf of the holder.

Note: This means that the Direction does not apply to a person if the person is fishing in the area of the Southern and Eastern Scalefish and Shark Fishery in accordance with a fishing concession that is subject to another plan of management in force under the Act, under a scientific permit, a permit issued in another fishery, or under a licence issued under a law of a State or Territory.

7 Prohibition on retaining snapper

The holder must not retain any snapper (*Chrysophrys auratus*) taken from South Australian waters from the date of commencement of this instrument until 11:59 p.m. on 15 December 2018.

8 Interpretation

If the holder lands fish at a place on or within the coastline of South Australia, the concession holder is to be treated as having taken the fish in South Australian waters

9 Interaction with other legislative instruments

This instrument does not affect any other Direction made under section 41A of Act.